

EXHIBIT “A”

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BRANDON WASHINGTON and
PRESTON WASHINGTON,

AMENDED VERIFIED COMPLAINT

Plaintiffs,

Index No. 156478/2015

-against-

THE CITY OF NEW YORK and
POLICE OFFICER LUIS CAMPANA,

Defendants.
-----X

Plaintiffs, by their attorneys Levine & Gilbert, complaining of the defendants, respectfully set forth and allege as follows:

**AS AND FOR A FIRST SEPARATE AND DISTINCT CAUSE OF ACTION
PURSUANT TO 42 U.S.C. §1983 IN FAVOR OF BRANDON WASHINGTON**

FIRST: That upon information and belief and at all the times hereinafter mentioned, the defendant THE CITY OF NEW YORK was and still is a municipal corporation organized under and by virtue of the laws of the State of New York.

SECOND: That upon information and belief and at all the times hereinafter mentioned, the said defendant THE CITY OF NEW YORK maintains a Police Force within the confines of said city to enforce the existing laws and for the purpose of providing safety to its residents.

THIRD: That upon information and belief and at all the times hereinafter mentioned, the defendant LUIS CAMPANA was a New York City Police Officer on duty and acting within the scope of his authority.

FOURTH: That on or about the 23rd day of May, 2014, at or about 6:40 P.M. at or near the intersection of 95th Street and Central Park West in the City, County and State of New York, plaintiff PRESTON WASHINGTON was legally operating a motor vehicle in which plaintiff BRANDON WASHINGTON was a lawful passenger.

FIFTH: That at all the times hereinafter mentioned, the said motor vehicle operated by plaintiff PRESTON WASHINGTON in which plaintiff BRANDON WASHINGTON was a lawful passenger was legally proceeding at the above-mentioned location and not in violation of any law or statute.

SIXTH: That the above-named defendant LUIS CAMPANA without reasonable suspicion or probable cause and without any basis in law stopped the vehicle which plaintiff PRESTON WASHINGTON was operating in which plaintiff BRANDON WASHINGTON was a lawful passenger.

SEVENTH: That the above-named defendants without probable cause falsely arrested both plaintiffs, falsely claiming that the basis for said arrest was allegedly an illegally possessed weapon in plain sight.

EIGHTH: That in truth and in fact, the aforesaid defendant LUIS CAMPANA was not able to see any weapon whatsoever in plain sight and that the predicate falsely utilized by said defendant LUIS CAMPANA was untrue both in fact and in law.

NINTH: That as a result of the aforementioned, both plaintiffs were improperly placed under arrest, improperly shackled and manacled, taken to a local precinct and thereafter processed through Central Booking and into Criminal Court without any basis therefor and without due process.

TENTH: That as a result of the aforementioned, each plaintiff was required to and did seek and secure legal representation.

ELEVENTH: That as a result of the aforementioned, each plaintiff before being released was required to spend inordinate time in a jail lock-up before release under bail and/or release on their own recognizance.

TWELFTH: That as a result of the aforementioned, each plaintiff individually and separately has been denied his right to liberty and has been wrongfully arrested and imprisoned without reasonable suspicion and/or probable cause in violation of their Federal and State constitutional rights to be free from warrantless arrest and/or arrest not predicated upon due process.

THIRTEENTH: That as a result of the aforementioned, each plaintiff has been physically and emotionally damaged by the illegal acts of the defendant LUIS CAMPANA acting within the scope and ambit of his

authority as well as illegally and without any basis whatsoever, in violation of 42 U.S.C §1983 as well as State law.

FOURTEENTH: That on January 15, 2015, upon the motion of the Assistant District Attorney of the City, County and State of New York who in open court stated that after investigation it was determined that the defendant police officer above-mentioned could not have seen the aforesaid illegal hand gun from his vantage point, and the Office of the District Attorney having determined that the stop and arrest was illegal moved to dismiss the aforesaid charges on the merits and with prejudice.

FIFTEENTH: That sometime prior to May 23, 2014 and for an inordinate period of time, the defendant CITY OF NEW YORK promulgated and facilitated an illegal policy training and advising their police officers, including the defendant POLICE OFFICER LUIS CAMPANA, to stop and detain an individual who looks suspicious but whose conduct may not have met the requirement of reasonable suspicion and/or probable cause.

SIXTEENTH: That defendant POLICE OFFICER LUIS CAMPANA, acting under color of right but not having either reasonable suspicion or probable cause and in pursuit of the defendant CITY OF NEW YORK's illegal policy to stop and frisk prospective defendants even if the arresting officer did not perceive conduct sufficient to make a legal and/or lawful arrest pursuant to reasonable suspicion and/or probable cause, nevertheless in violation of plaintiff's Constitutional rights and under color of authority arrested both plaintiffs.

SEVENTEENTH: That plaintiff was required to and did seek and secure legal counsel and representation, expending diverse sums of money therefor.

EIGHTEENTH: That both plaintiff's suffered damage due directly and proximately to the illegal conduct of both defendants in violation of 42 U.S.C. §1983.

NINETEENTH: That as hereinbefore set forth, each plaintiff was subject to false imprisonment/false arrest, was subject to being incarcerated as a direct and proximate result of the illegal and unconstitutional policy of the defendants which caused each plaintiff a deprivation of rights protected by the Constitution of the United States of America.

TWENTIETH: That the aforesaid municipal policy or custom was the proximate cause of the Constitutional tort which was committed at the auspices, instance and direction of the defendant's municipality carried out by the defendant officer.

TWENTY-FIRST: That each plaintiff has been damaged in an amount in excess of the jurisdictional limits of all lower courts.

**AS AND FOR A SEPARATE AND DISTINCT CAUSE OF ACTION
PURSUANT TO 42 U.S.C. §1983 IN FAVOR OF PRESTON WASHINGTON**

TWENTY-SECOND: This plaintiff repeats, reiterates and realleges as part of this cause of action each and every allegation set forth in paragraphs marked "FIRST" through "NINETEENTH" with the same force and effect as if fully set forth herein.

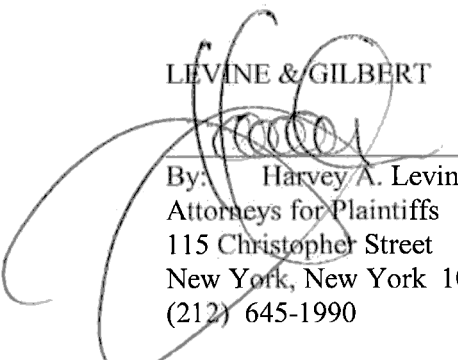
TWENTY-THIRD: That this plaintiff has been damaged in an amount in excess of the jurisdictional limits of all lower courts.

WHEREFORE, plaintiff demands that judgment be made and entered herein as follows:

- (a) on the first cause of action for each plaintiff individually and separately in an amount in excess of the jurisdictional limits of all lower courts;
- (b) on the second cause of action for each plaintiff individually and separately in an amount in excess of the jurisdictional limits of all lower courts; and
- (c) for appropriate counsel fees for defending each plaintiff against the inappropriate charges brought on by the false and wrongful arrest and detention as set forth above as well as prosecuting each plaintiff's causes of action herein in an amount in excess of the jurisdictional limits of all lower courts; and
- (d) for such other, further and different relief as to this Court may seem just and proper.

Dated: New York, New York
January 15, 2019

LEVINE & GILBERT

By: 
Attorneys for Plaintiffs
115 Christopher Street
New York, New York 10014
(212) 645-1990

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

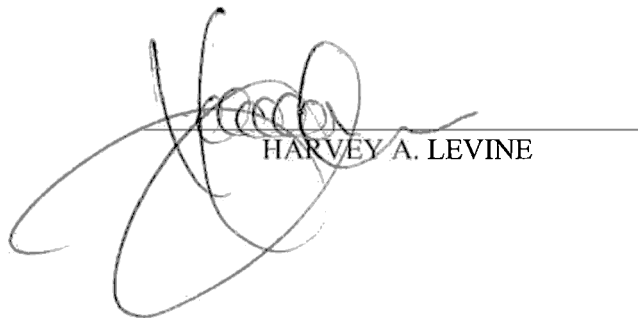
HARVEY A. LEVINE, an attorney, affirms under penalties of perjury:

That he is the attorney for the plaintiffs in the within entitled action. That he has read the foregoing **AMENDED COMPLAINT** and knows the contents thereof. That the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the reason this Verification is made by your affirmant and not by the plaintiff is that the plaintiffs do not reside in the county where your affirmant has his office.

That the sources of your affirmant's information and belief are conversations had with the plaintiffs as well as records on file and in his possession.

Dated: New York, New York
January 15, 2019


HARVEY A. LEVINE